

25PR00599 Estate of Bonita Lynne Hood

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-08-04

Motion: Petition for Probate and Letters Testamentary

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25pr00599>

Source SHA-256: 910cd3d8d8ffd8e1e581e2b9fe8de460bb0eb8881b98a83d7b1def4a879933f2

Tentative Ruling: Estate of Bonita Lynne Hood

Case Number

25PR00599

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 08/04/2026 - 09:00

Nature of Proceedings

Petition for Probate and Letters Testamentary

Tentative Ruling

Probate Notes:

The following must be submitted:

Confidential Supplement to Duties and Liabilities of Personal Representative (DE-147(S)). The proposed personal representative must fill out and sign this form and submit it to the court. (Prob. Code, § 8404.) No such form was submitted.

The following is noted for the Court at the hearing:

No Original Will. An original will and any codicil cannot currently be lodged with the Court. (Prob. Code, §§ 8200, et seq.) The Court cannot admit a copy of a will to probate without evidence that the lost original will cannot be found and the presumption of destruction in Probate Code section 6124 does not apply.

Petitioner may overcome this presumption with substantial evidence that shows the Court some supported fact that the Decedent did not destroy the will. Petitioner is referred to the following authority to understand the evidence required to overcome the presumption of destruction in Probate Code section 6124:

Estate of Trikha (2013) 219 Cal.App.4th 791, 804 [substantial evidence required to overcome presumption]

Lauermann v. Superior Court (2005) 127 Cal.App.4th 1327, 1333 [Duplicate Original not usually sufficient]

Petition for Production Required. Petitioner alleges the original will is the possession of a custodian that does not appear willing to deliver the will to the court. A petition pursuant to Part 2 of Division 7, Chapter 3, Article 1 of the Probate Code is required to compel delivery of the will to probate. (Prob. Code, §§8200 et seq.)

Appearances:

The court is open to the public for court business. The court is also conducting hearings via Zoom videoconference.

Meeting ID: 160 543 3416

Passcode: 5053334

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

US